

IA 6/2026 — EXECUTIVE SUMMARY

A) THE APPLICATION AGAINST TRUST (D1), MANAGING TRUSTEE (D2)

- 1) Order XI rr.12 & 14 CPC — production, on oath, of nineteen years of the Trust's accounts and every document its own Minutes record. (see B8, G)

B) CAUGHT CONCEALING — AND NINETEEN YEARS OF MISSING ACCOUNTS

- 1) On 16.02.2026 D2 swore the records were "not available"; challenged, he produced them himself on 18.05.2026 — 16.02.2025 oath was false. (see A2, A4, H1)
- 2) Nineteen years (2007—2024): not one book of account kept, by the managing trustee who is bound by deed and Trust law to keep them. (see B5, I9)
- 3) Rs 2.31 crore "deposited" by members, Rs 11.99 crore "spent" — not one ledger, voucher or GST invoice. (see C1, C3, G7)
- 4) The Trust's only bank account shows only Rs 2.14 lakh transactions till 16.02.2026. Other "construction account" and "construction trust account" show ~Rs 12 crore ran accounts. (see E4, E6)

C) SELF-DEALING WITH THE HERITAGE

- 1) D2 alone leased the Meda for ten years, extendable to twenty — no co-trustee signed, no resolution to lease before signing; Trustees "ratified" 89 days later. (see I6, L5)
- 2) Twenty years of rent routed back to D2 — Rs 1,01,86,000 to repay himself and his son — on a flat rent, no deposit, no valuation, no bidding. (see J1, J3, J5)

D) WHY THIS IA SHOULD NOT BE REFUSED

- 1) On this very property, the order of 03.12.2025 already found no prima facie case for D2 and that the Plaintiff would be "denuded" of his right. (see K3)
- 2) Each month the crores grow more untraceable, and now a commercial operator is on the premises bringing public in; the money can never be traced after. (see L6, L7)

E) RELIEF

- 1) Direct D2 to produce, on oath, the nineteen years of accounts, Rs 11.99 crore of expenses and withheld instruments; adverse inference if withheld. (see G, E7)